

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAQUASIA BURGESS, BRANDON BENJAMIN,
JAQUINN MAYE, and CVANTI SHEPPARD,
Plaintiffs,

Index No.:

Date Filed:

-against-

Plaintiffs designate
KINGS COUNTY
as the place of trial

THE CITY OF NEW YORK, P.O. JOHN DOE
[TAX REG. #963699], SERGEANT JOHN DOE
[TAX REG. #941905], and JOHN DOE AND
JANE DOE #1-8 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

SUMMONS

Defendants.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorneys within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
May 1, 2023

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Ugochukwu Uzoh
Attorney for the Plaintiffs
56 Willoughby Street, Third Floor
Brooklyn, New York 11201
(718) 874-6045

To:

THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, New York 10007

P.O. JOHN DOE [TAX REG. #963699]

NYPD-73rd Precinct

1470 East New York Avenue

Brooklyn, NY 11212

SERGEANT JOHN DOE [TAX REG. #941905]

NYPD-73rd Precinct

1470 East New York Avenue

Brooklyn, NY 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAQUASIA BURGESS, BRANDON BENJAMIN,
JAQUINN MAYE, and CVANTI SHEPPARD,
Plaintiffs,

Index No.

COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. JOHN DOE
[TAX REG. #963699], SERGEANT JOHN DOE
[TAX REG. #941905], and JOHN DOE AND
JANE DOE #1-8 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

Defendants.

-----X
Plaintiffs, LAQUASIA BURGESS, BRANDON BENJAMIN, JAQUINN MAYE, and
CVANTI SHEPPARD, by their attorney, The Law Offices of UGO UZOH, P.C.,
complaining of the defendants herein, The City of New York, P.O. John Doe [Tax Reg.
#963699], Sergeant John Doe [Tax Reg. #941905], and John Doe and Jane Doe #1-8
(collectively, “defendants”), respectfully allege as follows:

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiffs timely made and served a notice of claim upon the defendants in compliance with N.Y. Gen. Mun. Law § 50-e.
3. At least thirty days have elapsed since the service of aforesaid notice of claim and adjustment or payment thereof has been neglected or refused.

4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

5. Plaintiffs are and were at all times material herein residents of Brooklyn, County of Kings, City and State of New York.
6. Defendant City of New York (“City”) is a municipal corporation duly organized and existing under the laws of the State of New York.
7. The City of New York Police Department (“NYPD”) is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City., Sergeant John Doe
8. Defendant P.O. John Doe [Tax Reg. #963699] was at all times material herein a police officer or detective employed by the NYPD. He is named here in his official and individual capacities.
9. Defendant Sergeant John Doe [Tax Reg. #941905] was at all times material herein a sergeant or police officer employed by the NYPD. He is named here in his official and individual capacities.
10. Defendants John Doe and Jane Doe #1-8 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.
11. Defendants P.O. John Doe, Sergeant John Doe, and John Doe and Jane Doe #1-8 are collectively referred to herein as “defendant officers”.
12. At all times material to this Complaint, the defendant officers acted toward plaintiffs under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

13. On or about February 19, 2022, at approximately 2:00 a.m., defendant officers, acting in concert, arrested plaintiffs without cause at or within the vicinity of the Seth Low House’s parking lot which is located at or close to the corner of Pitkin and Christopher Avenues, Brooklyn, New York, and charged the plaintiffs with various crimes including N.Y. PL 265.03

‘Criminal possession of a weapon in the second degree’ and N.Y. PL 265.02
‘Criminal possession of a weapon in the third degree’.

14. Plaintiffs, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
15. Prior to the arrest, plaintiffs, who are friends and family -- with Laquasia being Jaquinn’s younger sister, were sitting inside Brandon’s car with Brandon seated in the driver’s seat, Cvanti seated in the front passenger’s seat, and Laquasia and Jaquinn seated in the back seat.
16. The vehicle was legally parked by Brandon who resides in one of the Seth Low Houses.
17. Defendant officers pulled into the parking lot within a few minutes of the plaintiffs’ arrival and immediately approached the plaintiffs asking for identification.
18. Plaintiffs inquired as to the reason why defendant officers were asking for identification.
19. Immediately thereafter, defendant officers proceeded to forcibly remove the plaintiffs from the vehicle.
20. Defendant officers tightly handcuffed the plaintiffs with their hands placed behind their respective backs causing the plaintiffs to experience pain and numbness in their hands.
21. Defendant officers then subjected the plaintiffs to illegal and unlawful search.
22. Defendant officers also proceeded to perform an illegal and unauthorized search of the vehicle.
23. At all times material to this Complaint, no contraband was located in plain view and no contraband was located in any area where it could be argued that the plaintiffs saw such contraband, had regular access to such area and/or exercised dominion and control over the area.
24. Defendant officers did not recover any contraband from their unlawful search of the plaintiffs and/or the vehicle.
25. Laquasia did have an unopened Bombay Gin with her in the backseat.

26. Notwithstanding the above, defendant officers eventually pushed the plaintiffs into their police vehicle and transported the plaintiffs to NYPD-73rd Precinct for arrest processing.
27. Defendant officers seized and/or impounded Brandon's vehicle.
28. While at the precinct, defendant officers further subjected the plaintiffs to illegal and unlawful search.
29. Defendant officers did not recover any contraband from their unlawful search of the plaintiffs.
30. Notwithstanding, defendant officers continued to detain the plaintiffs at the precinct.
31. In addition to Brandon's vehicle, defendant officers seized several of the plaintiffs' properties including, but not limited to, cell phones, cell phone accessories, Bombay Gin, clothes, credit card, and wallets.
32. Defendant officers did not issue or provide the plaintiffs with any voucher specifying the properties seized from them with the constitutionally-required notice printed on the voucher describing how the plaintiffs could reclaim the aforementioned properties.
33. Defendant officers did not otherwise notify the plaintiffs of any procedure they could follow to reclaim or recover their properties and have refused to return many of the aforesaid properties -- including, but not limited to, the cell phones, cell phone accessories, Bombay Gin, clothes, credit card, and wallets -- to the plaintiffs.
34. After detaining the plaintiffs at the precinct for a lengthy period of time, plaintiffs were transported to Central Booking to await arraignment.
35. At some point following their arrest, defendant officers met with prosecutors employed by the Kings County District Attorney's Office.
36. During this meeting, defendant officers stated to the prosecutors, among other things, that the plaintiffs committed the charged crime/offense(s) and that Brandon was drinking an alcoholic beverage or was in the possession of an open container in his car which was located upon the public highways or

right-of-way public highway, and later forwarded to the prosecutors their police records and reports.

37. Relying upon the police records, reports and statements, the prosecutors initiated criminal actions against the plaintiffs.
38. The prosecutors subsequently conducted an independent investigation and concluded that there was no evidence of any crime committed by Laquasia, Cvanti, and Jaquinn.
39. As a result, the prosecutors declined to prosecute Laquasia, Cvanti, and Jaquinn.
40. Brandon was eventually arraigned on a criminal court complaint charging him with N.Y. VTL 1227(1) 'Consumption or possession of alcoholic beverages in certain motor vehicles'.
41. Upon arraignment, the charge(s) against Brandon was adjourned in contemplation of dismissal, and was eventually dismissed and sealed on August 19, 2022.
42. Even though the charge(s) against Brandon was dismissed, Brandon still remained incarcerated because of parole hold stemming from the arrest and charge(s).
43. On or about March 22, 2022, following the revocation of the parole hold, Brandon was released from his unlawful incarceration.
44. Following the plaintiffs' release, the plaintiffs requested the defendants to release their seized properties to them.
45. Defendants refused to release many of the plaintiffs' properties including, but not limited to, the cell phones, cell phone accessories, Bombay Gin, clothes, credit card, and wallets.
46. Defendants also refused to release Brandon's vehicle to him until approximately four months later.
47. Because of the seizure of his vehicle, Brandon eventually lost his job which was based in Long Island due to difficulties transporting himself from Brooklyn to Long Island.

48. Ultimately, Brandon's vehicle was repossessed as he was unable to pay his car loan.
49. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
50. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiffs.
51. As a result of the aforesaid actions by defendants, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

52. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 51 of this complaint as though fully set forth herein.
53. Defendant officers arrested the plaintiffs without probable cause or reasonable grounds.
54. The conduct of defendant officers, as described herein, amounted to false arrest.
55. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
56. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION - against defendant officers

57. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 56 of this complaint as though fully set forth herein.
58. Defendant officers forwarded to the prosecutors their falsified records and statements.
59. Relying upon the records and statements, the prosecutors initiated criminal actions against the plaintiffs.
60. Brandon was required to, and did, appear in court to defend himself from the false charge(s) levied against him with malice by defendants.
61. Because of the conduct of the defendants, Brandon was maliciously prosecuted.
62. Eventually, the criminal proceedings terminated in Brandon's favor.
63. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
64. Such conduct described herein violated Brandon's rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
65. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRD CAUSE OF ACTION: FABRICATION OF EVIDENCE AND DENIAL OF RIGHT TO A FAIR TRIAL - against defendant officers

66. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 65 of this complaint as though fully set forth herein.
67. Defendant officers manufactured evidence of criminality against the plaintiffs likely to influence a jury's decision which the prosecutors relied upon to initiate criminal actions against the plaintiffs.
68. The plaintiffs were deprived of their liberty as a result.

69. The conduct of defendant officers, as described herein, amounted to fabrication of evidence and denial of right to a fair trial.
70. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
71. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL STOP AND FRISK AND UNREASONABLE SEARCH & SEIZURE - against defendant officers

72. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 71 of this complaint as though fully set forth herein.
73. Defendant officers unlawfully stopped and subjected the plaintiffs to illegal search of their persons and property.
74. The conduct of defendant officers, as described herein, amounted to unlawful stop and frisk and unreasonable searches and seizures.
75. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
76. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

77. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 76 of this complaint as though fully set forth herein.
78. The conduct of defendant officers, as described herein, amounted to excessive use of force.

79. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

80. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

81. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 80 of this complaint as though fully set forth herein.

82. Defendant officers denied plaintiffs their due process right to be free from continued detention after it was or should have been known that plaintiffs were entitled to release.

83. The conduct of defendant officers, as described herein, amounted to unreasonable detention.

84. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

85. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SEVENTH CAUSE OF ACTION: FIRST AMENDMENT RETALIATION - against defendant officers

86. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 85 of this complaint as though fully set forth herein.

87. Defendant officers arrested the plaintiffs in retaliation for questioning their conduct on February 19, 2022.

88. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

89. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

EIGHTH CAUSE OF ACTION: DENIAL OF RIGHT TO EQUAL PROTECTION - against defendant officers

90. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 89 of this complaint as though fully set forth herein.
91. Defendant officers routinely harass the plaintiffs and their friends and family, and have refused to conduct any investigations concerning the plaintiffs' complaints simply because they are members of a racial/ethnic minority group.
92. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
93. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

NINTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

94. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.
95. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
96. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
97. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

98. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION: FAILURE TO
TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against
defendant City

99. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 98 of this complaint as though fully set forth herein.
100. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, the proper procedures for obtaining, returning, destroying and/or retaining DNA, obligation not to promote or condone perjury and/or not to assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.
101. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiffs on the pretext that they were involved in robbery, narcotics, drugs, illegal guns and/or other crimes.
102. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.
103. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), this Court observed that the City had been accused of racial

- profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.
104. In *Ligon v. City of New York*, 925 F. Supp. 2d 478, 485-86 (S.D.N.Y. 2013), the Court observed that the City of New York, acting through the NYPD, engages in unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).
105. Notably, numerous civil rights complaints filed in this Court have similarly alleged that police officers in those cases, including the defendant officers, routinely harass individuals who are members of various racial/ethnic minority groups and have refused to conduct any investigations concerning their complaints simply because of their membership of the racial/ethnic minority groups. *See, e.g., Jawanza Lewis v. City of New York* (Index No. 519597/2021); *Tyquan Spann v. City of New York* (Index No. 526130/2019); *Dominique Gist v. City of New York* (Index No. 521213/2019); *Dayvoun Joyner v. City of New York* (Index No. 513707/2019).
106. Defendant City has settled numerous lawsuits in this district against several police officers assigned to the NYPD alleging, among other things, that the police officers falsely arrested the plaintiffs without probable cause. *See, e.g., Tiara Weber v. City of New York* (22 CV 4518); *Tony Holley v. City of New York* (21 CV 4682); *Dwayne Holley v. City of New York* (21 CV 4681); *Bilal Jacks v. City of New York* (20 CV 1012); *Trevonne King v. City of New York* (19 CV 3361); *Mondaray Whitaker v. City of New York* (18 CV 6897); *Warren Monk v. City of New York* (18 CV 6458); *Justin Baker v. City of New York* (17 CV 4493); *Tony Holley v. City of New York* (17 CV 278); *Eric Davis v. City of New York* (16 CV 385); *Jimmy Wilson v. City of New York* (15 CV 6326); *Donnell Jackson v. City of New York* (15 CV 4109); *Crystal Whitfield v. City of New York* (14 CV 6085).
107. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police officers routinely arrest innocent citizens without probable cause.

108. As a result of defendant City's failure to properly train, supervise or discipline its police officers, defendant officers unlawfully arrested the plaintiffs.
109. Defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.
110. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.
111. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

ELEVENTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

112. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 111 of this complaint as though fully set forth herein.
113. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving them of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting

discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

114. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
115. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
116. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

TWELFTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) -
against defendants

117. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 116 of this complaint as though fully set forth herein.
118. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.
119. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (MALICIOUS PROSECUTION) -
against defendants

120. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 119 of this complaint as though fully set forth herein.
121. The conduct of defendant officers, as described herein, amounted to malicious prosecution.
122. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: TORTS (REPLEVIN & CONVERSION) -
against defendants

123. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 122 of this complaint as though fully set forth herein.
124. At the time of the plaintiffs' arrest, defendant officers seized and/or appropriated to themselves several of plaintiffs' properties including, but not limited to, the cell phones, cell phone accessories, Bombay Gin, clothes, credit card, and wallets.
125. Defendant officers did not provide the plaintiffs with any voucher for their said properties.
126. Defendant officers did not issue or provide the plaintiff with any voucher specifying the properties seized from them with the constitutionally-required notice printed on the voucher describing how the plaintiffs could reclaim the aforementioned properties.
127. Defendant officers did not otherwise notify the plaintiffs of any procedure they could follow to reclaim or recover their properties, and have refused to return the aforesaid properties including, but not limited to, the cell phones, cell phone accessories, Bombay Gin, clothes, credit card, and wallets.
128. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

129. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 128 of this complaint as though fully set forth herein.
130. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
131. Plaintiffs' emotional distress have damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the arrest, assault, detention, and imprisonment by defendants.
132. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against defendant City

133. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 132 of this complaint as though fully set forth herein.
134. Upon information and belief, defendant City failed to properly train, supervise or discipline its agents, servants, employees, officers and/or representatives, including the defendant officers, concerning correct practices in conducting investigations, the proper identification procedures, the proper use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.
135. Upon information and belief, defendant City failed to properly screen, hire and/or retain the defendant officers.
136. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.

137. Upon information and belief, defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiffs or to those in a like situation would probably result from such conduct described herein.
138. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.
139. Upon information and belief, defendant City's negligence in screening, hiring and retaining defendant officers proximately caused plaintiffs' injuries.

DAMAGES

140. That by reason of the foregoing, plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs respectfully pray judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiffs' reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
May 1, 2023

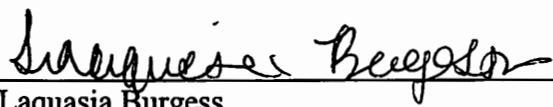
UGO UZOH, P.C.

By: *Ugochukwu Uzoh*
Ugochukwu Uzoh
Attorney for the Plaintiffs
56 Willoughby Street, Third Floor
Brooklyn, N.Y. 11201
Tel. No: (718) 874-6045
Fax No: (718) 576-2685
Email: u.ugochukwu@yahoo.com

STATE OF NEW YORK
COUNTY OF KINGS

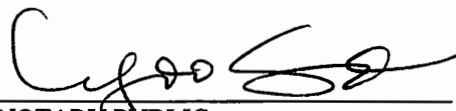
SS:

LAQUASIA BURGESS being duly sworn deposes and says that she is the plaintiff in foregoing Summons and Verified Complaint. That she has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of her own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, she believes them to be true.


Laquasia Burgess

SWORN TO BEFORE ME THIS 1ST DAY

OF MAY 2023

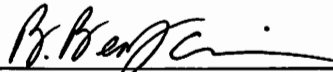

NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

STATE OF NEW YORK
COUNTY OF KINGS

SS:

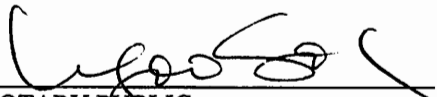
BRANDON BENJAMIN being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.



Brandon Benjamin

SWORN TO BEFORE ME THIS 1ST DAY

OF MAY 2023



NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

STATE OF NEW YORK
COUNTY OF KINGS

SS:

JAQUINN MAYE being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.

Jaquinn Maye
Jaquinn Maye

SWORN TO BEFORE ME THIS 1ST DAY

OF MAY 2023

[Signature]
NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02026181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

STATE OF NEW YORK
COUNTY OF KINGS

SS:

CVANTI SHEPPARD being duly sworn deposes and says that he is the plaintiff in foregoing Summons and Verified Complaint. That he has read the foregoing Summons and Verified Complaint and knows the contents thereof, the same is true of his own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters, he believes them to be true.

Cvanti Sheppard
Cvanti Sheppard

SWORN TO BEFORE ME THIS 1ST DAY

OF MAY 2023

Ugochukwu Uzoh
NOTARY PUBLIC

UGOCHUKWU UZOH
Notary Public - State of New York
No. 02UZ6181083
Qualified in Kings County
My Commission Expires Jan. 22, 2024

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF ____, 20__

LAQUASIA BURGESS, BRANDON
BENJAMIN, JAQUINN MAYE, and
CVANTI SHEPPARD,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. JOHN DOE
[TAX REG. #963699], SERGEANT JOHN
DOE [TAX REG. #941905], and JOHN DOE
AND JANE DOE #1-8 (the names John and
Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.

SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I
have served, filed or submitted to the court in the within
action are not frivolous pursuant to Sec. 130-1.1a of the
Rules of the Chief Administrator (22NYCRR)

Ugochukwu Uzoh
Ugochukwu Uzoh

May 1, 2023

Dated

Ugo Uzoh, P.C.

Attorneys for plaintiffs
Office & Post Office Address

**56 WILLOUGHBY STREET, THIRD FLOOR
BROOKLYN, NY 11201**

TEL: (718) 874-6045